

Senate File 167

H-1008

1 Amend Senate File 167, as passed by the Senate, as follows:

2 1. By striking everything after the enacting clause and
3 inserting:

4 <DIVISION I

5 STATE AND CATEGORICAL PERCENT OF GROWTH AND PROPERTY TAX
6 REPLACEMENT PAYMENTS

7 Section 1. Section 257.8, subsections 1 and 2, Code 2025,
8 are amended to read as follows:

9 1. *State percent of growth.* ~~The state percent of growth for~~
10 ~~the budget year beginning July 1, 2022, is two and one-half~~
11 ~~percent.~~ The state percent of growth for the budget year
12 beginning July 1, 2023, is three percent. The state percent
13 of growth for the budget year beginning July 1, 2024, is two
14 and one-half percent. The state percent of growth for the
15 budget year beginning July 1, 2025, is five percent. The state
16 percent of growth for each subsequent budget year shall be
17 established by statute which shall be enacted within thirty
18 days of the transmission of the governor's budget required by
19 February 1 under [section 8.21](#) during the regular legislative
20 session beginning in the base year.

21 2. *Categorical state percent of growth.* ~~The categorical~~
22 ~~state percent of growth for the budget year beginning July~~
23 ~~1, 2022, is two and one-half percent.~~ The categorical state
24 percent of growth for the budget year beginning July 1, 2023,
25 is three percent. The categorical state percent of growth for
26 the budget year beginning July 1, 2024, is two and one-half
27 percent. The categorical state percent of growth for the
28 budget year beginning July 1, 2025, is five percent. The
29 categorical state percent of growth for each budget year shall
30 be established by statute which shall be enacted within thirty
31 days of the transmission of the governor's budget required by
32 February 1 under [section 8.21](#) during the regular legislative
33 session beginning in the base year. The categorical state
34 percent of growth may include state percents of growth for
35 the teacher salary supplement, the professional development

1 supplement, the early intervention supplement, the teacher
2 leadership supplement, and for budget years beginning on or
3 after July 1, 2020, transportation equity aid payments under
4 section 257.16C.

5 Sec. 2. Section 257.16B, subsections 1 and 2, Code 2025, are
6 amended to read as follows:

7 1. For each fiscal year beginning on or after July 1, 2022
8 2023, there is appropriated from the general fund of the state
9 to the department of education an amount necessary to make all
10 school district property tax replacement payments under this
11 section, as calculated in [subsection 2](#).

12 ~~2. a. (1) For the budget year beginning July 1, 2022,~~
13 ~~the amount of each school district's property tax replacement~~
14 ~~payment shall be the product of the school district's weighted~~
15 ~~enrollment for the budget year multiplied by the per pupil~~
16 ~~property tax replacement amount for the budget year calculated~~
17 ~~under subparagraph (2).~~

18 ~~(2) The per pupil property tax replacement amount for the~~
19 ~~budget year beginning July 1, 2022, is equal to the sum of one~~
20 ~~hundred fifty-three dollars plus the difference between the~~
21 ~~following:~~

22 ~~(a) The regular program state cost per pupil for the budget~~
23 ~~year beginning July 1, 2022, multiplied by one hundred percent~~
24 ~~less the regular program foundation base per pupil percentage~~
25 ~~pursuant to [section 257.1](#) for the budget year beginning July~~
26 ~~1, 2022.~~

27 ~~(b) The regular program state cost per pupil for the budget~~
28 ~~year beginning July 1, 2021, multiplied by one hundred percent~~
29 ~~less the regular program foundation base per pupil percentage~~
30 ~~pursuant to [section 257.1](#) for the budget year beginning July~~
31 ~~1, 2022.~~

32 ~~b. a.~~ (1) For the budget year beginning July 1, 2023,
33 the amount of each school district's property tax replacement
34 payment shall be the product of the school district's weighted
35 enrollment for the budget year multiplied by the per pupil

1 property tax replacement amount for the budget year calculated
2 under subparagraph (2).

3 (2) The per pupil property tax replacement amount for the
4 budget year beginning July 1, 2023, is equal to the sum of one
5 hundred fifty-three dollars plus the difference between the
6 following:

7 (a) The regular program state cost per pupil for the budget
8 year beginning July 1, 2023, multiplied by one hundred percent
9 less the regular program foundation base per pupil percentage
10 pursuant to [section 257.1](#) for the budget year beginning July
11 1, 2023.

12 (b) The regular program state cost per pupil for the budget
13 year beginning July 1, 2021, multiplied by one hundred percent
14 less the regular program foundation base per pupil percentage
15 pursuant to [section 257.1](#) for the budget year beginning July
16 1, 2023.

17 ~~c.~~ b. (1) For each the budget year beginning ~~on or after~~
18 July 1, 2024, the amount of each school district's property
19 tax replacement payment shall be the product of the school
20 district's weighted enrollment for the budget year multiplied
21 by the per pupil property tax replacement amount for the budget
22 year calculated under subparagraph (2).

23 (2) The per pupil property tax replacement amount for
24 the budget years year beginning ~~on or after~~ July 1, 2024, is
25 equal to the sum of one hundred fifty-three dollars plus the
26 difference between the following:

27 (a) The regular program state cost per pupil for the budget
28 year beginning July 1, 2024, multiplied by one hundred percent
29 less the regular program foundation base per pupil percentage
30 pursuant to [section 257.1](#) for the ~~applicable~~ budget year ~~under~~
31 ~~this paragraph~~ beginning July 1, 2024.

32 (b) The regular program state cost per pupil for the budget
33 year beginning July 1, 2021, multiplied by one hundred percent
34 less the regular program foundation base per pupil percentage
35 pursuant to [section 257.1](#) for the ~~applicable~~ budget year ~~under~~

1 ~~this paragraph~~ beginning July 1, 2024.

2 c. (1) For each budget year beginning on or after July
3 1, 2025, the amount of each school district's property
4 tax replacement payment shall be the product of the school
5 district's weighted enrollment for the budget year multiplied
6 by the per pupil property tax replacement amount for the budget
7 year calculated under subparagraph (2).

8 (2) The per pupil property tax replacement amount for budget
9 years beginning on or after July 1, 2025, is equal to the sum
10 of one hundred fifty-three dollars plus the difference between
11 the following:

12 (a) The regular program state cost per pupil for the budget
13 year beginning July 1, 2025, multiplied by one hundred percent
14 less the regular program foundation base per pupil percentage
15 pursuant to section 257.1 for the applicable budget year under
16 this paragraph.

17 (b) The regular program state cost per pupil for the budget
18 year beginning July 1, 2021, multiplied by one hundred percent
19 less the regular program foundation base per pupil percentage
20 pursuant to section 257.1 for the applicable budget year under
21 this paragraph.

22 Sec. 3. EFFECTIVE DATE. This division of this Act, being
23 deemed of immediate importance, takes effect upon enactment.

24 DIVISION II

25 STATE COST PER PUPIL

26 Sec. 4. Section 257.9, subsection 2, Code 2025, is amended
27 to read as follows:

28 2. *Regular program state cost per pupil for 1992-1993 and*
29 *succeeding years.*

30 a. For the budget year beginning July 1, 1992, and
31 succeeding budget years beginning before July 1, 2018, the
32 regular program state cost per pupil for a budget year is the
33 regular program state cost per pupil for the base year plus the
34 regular program supplemental state aid for the budget year.

35 b. For the budget year beginning July 1, 2018, the regular

1 program state cost per pupil is the regular program state
2 cost per pupil for the base year plus the regular program
3 supplemental state aid for the budget year, plus five dollars.

4 *c.* For the budget year beginning July 1, 2019, the regular
5 program state cost per pupil is the regular program state
6 cost per pupil for the base year plus the regular program
7 supplemental state aid for the budget year, plus five dollars.

8 *d.* For the budget year beginning July 1, 2020, the regular
9 program state cost per pupil is the regular program state
10 cost per pupil for the base year plus the regular program
11 supplemental state aid for the budget year, plus ten dollars.

12 *e.* For the budget year beginning July 1, 2021, the regular
13 program state cost per pupil is the regular program state
14 cost per pupil for the base year plus the regular program
15 supplemental state aid for the budget year, plus ten dollars.

16 *f.* For the budget year beginning July 1, 2022, the regular
17 program state cost per pupil is the regular program state
18 cost per pupil for the base year plus the regular program
19 supplemental state aid for the budget year, plus five dollars.

20 *g.* For the budget ~~year~~ years beginning July 1, 2023, and
21 ~~succeeding budget years~~ July 1, 2024, the regular program state
22 cost per pupil for a budget year is the regular program state
23 cost per pupil for the base year plus the regular program
24 supplemental state aid for the budget year.

25 *h.* For the budget year beginning July 1, 2025, the regular
26 program state cost per pupil is the regular program state
27 cost per pupil for the base year plus the regular program
28 supplemental state aid for the budget year, plus ten dollars.

29 *i.* For the budget year beginning July 1, 2026, and
30 succeeding budget years, the regular program state cost per
31 pupil for a budget year is the regular program state cost per
32 pupil for the base year plus the regular program supplemental
33 state aid for the budget year.

34 Sec. 5. EFFECTIVE DATE. This division of this Act, being
35 deemed of immediate importance, takes effect upon enactment.

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DIVISION III

SUPPLEMENTARY WEIGHTING FOR SHARED OPERATIONAL FUNCTIONS

Sec. 6. Section 257.11, subsection 5, paragraph d, Code 2025, is amended to read as follows:

d. Supplementary weighting pursuant to [this subsection](#) shall be available to a school district during the period commencing with the budget year beginning July 1, 2014, through the budget year beginning July 1, 2034. The For budget years beginning prior to July 1, 2025, the maximum amount of additional weighting for which a school district shall be eligible in a budget year is twenty-one additional pupils; and for budget years beginning on or after July 1, 2025, the maximum amount of additional weighting for which a school district shall be eligible in a budget year is twenty-five pupils; provided, however, that for budget years beginning on or after July 1, 2024, the supplementary weighting assigned for a shared operational function in the area of a college and career transition counselor or coordinator shall not count toward this maximum amount. Criteria for determining the qualification of operational functions for supplementary weighting shall be determined by the department by rule, through consideration of increased student opportunities.

Sec. 7. EFFECTIVE DATE. This division of this Act, being deemed of immediate importance, takes effect upon enactment.

DIVISION IV

TRANSPORTATION EQUITY PAYMENTS

Sec. 8. Section 257.16C, subsection 3, paragraph d, subparagraph (4), unnumbered paragraph 1, Code 2025, is amended to read as follows:

~~For each~~ the fiscal year beginning ~~on or after~~ July 1, 2023, and the fiscal year beginning July 1, 2024, there is appropriated from the general fund of the state to the department of management for deposit in the transportation equity fund the sum of the following, or so much thereof as is necessary, to be used for the purposes of [this section](#):

1 Sec. 9. Section 257.16C, subsection 3, paragraph d, Code
2 2025, is amended by adding the following new subparagraphs:

3 NEW SUBPARAGRAPH. (5) For the fiscal year beginning
4 July 1, 2025, there is appropriated from the general fund of
5 the state to the department of management for deposit in the
6 transportation equity fund an amount necessary to make all
7 transportation equity aid payments under subsection 2, to be
8 used for the purposes of this section.

9 NEW SUBPARAGRAPH. (6) For each fiscal year beginning on
10 or after July 1, 2026, there is appropriated from the general
11 fund of the state to the department of management for deposit
12 in the transportation equity fund the sum of the following, or
13 so much thereof as is necessary, to be used for the purposes of
14 this section:

15 (a) The amount appropriated to the transportation equity
16 fund under this paragraph for the immediately preceding fiscal
17 year.

18 (b) The product of the amount determined under subparagraph
19 division (a) multiplied by the categorical percent of growth
20 under section 257.8, subsection 2, for the budget year
21 beginning on the same date of the fiscal year for which the
22 appropriation is made.

23 Sec. 10. EFFECTIVE DATE. This division of this Act, being
24 deemed of immediate importance, takes effect upon enactment.>

25 2. Title page, by striking lines 1 through 5 and inserting
26 <An Act relating to public school funding by establishing
27 the state percent of growth and the categorical state
28 percent of growth for the budget year beginning July 1, 2025,
29 modifying provisions relating to the property tax replacement
30 payments and transportation equity payments, modifying
31 provisions relating to the regular program state cost per
32 pupil and funding for shared operational functions, making
33 appropriations, and including effective date provisions.>

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